



File No.: EXP202105601

IMI Reference: A56ID 349459 - Case Register 454008

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the data protection authority of Lower Saxony on September 14, 2021. The complaint is directed against OPEN BANK, S.A. with NIF A28021079 (hereinafter, OPENBANK). The reasons for the complaint are as follows:

The complainant states that they wanted to make a transfer from their German bank to OPENBANK in Spain. After sending the necessary documentation, OPENBANK requested additional documentation containing personal data regarding the origin of the money for the transfer. The complainant asserts that they would have proven the origin of the money through emails sent to OPENBANK.

The complainant attaches copies of the emails exchanged with OPENBANK. In this exchange of emails between the parties, communications are observed ranging from emails in which OPENBANK requested the complainant to provide documentation proving the origin of the money for the transfers, the complainant's responses to OPENBANK, acknowledgments of receipt of said emails, as well as inquiries and writings in which the complainant expresses their dissatisfaction with the treatment received from the bank, and in which they file a complaint regarding the treatment received from it, along with the acknowledgment of receipt of the same.

These emails are:

- Email dated August 25, 2021, 21:10, from ***EMAIL.1 to ***EMAIL.2 in which payment confirmation attachments were included.
- Email dated August 25, 2021, 21:10, from ***EMAIL.1 to ***EMAIL.2 in which payment confirmation attachments were included.
- Two Emails dated August 25, 2021, from noreply@openbank.com to ***EMAIL.1.
- Email dated August 25, 2021, 21:20, from ***EMAIL.2 to ***EMAIL.1.
- Email dated August 25, 2021, 21:15, from ***EMAIL.2 to ***EMAIL.1.
- Email dated August 30, 2021, 09:22, from ***EMAIL.2 to ***EMAIL.1.
- Email dated September 3, 2021, 15:22, from ***EMAIL.2 to ***EMAIL.1.
- Email dated September 3, 2021, 17:56 from ***EMAIL.1 to ***EMAIL.2 with seven screenshots.
- Email dated September 3, 2021, 17:59, from noreply@openbank.com to ***EMAIL.1.
- Email dated September 5, 2021, 12:05, from ***EMAIL.2 to ***EMAIL.1.
- Email dated September 10, 2021, 12:44, from ***EMAIL.1 to ***EMAIL.2.
- Email dated September 10, 2021, 12:45, from noreply@openbank.com to ***EMAIL.1.
- Email dated September 14, 2021, 08:51, from ***EMAIL.2 to ***EMAIL.1.
- Email dated September 27, 2021, 10:06, from ***EMAIL.3 to ***EMAIL.1.
- Email dated December 14, 2021, 00:51, from ***EMAIL.4.
- Email dated December 14, 2021, 00:56, from noreply@openbank.com.
- Email dated December 28, 2021, 10:04, from ***EMAIL.2.
- Email dated December 28, 2021, 12:04, from ***EMAIL.4.
- Email dated December 28, 2021, 12:59, from ***EMAIL.4.
- Email dated December 30, 2021, 14:27, from ***EMAIL.4.
- Email dated January 24, 2022, 18:12, from incidencias@openbank.es.
- Email dated January 26, 2022, 15:44, from Santander complaints.
- List of phone calls.

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance between Member States, and the exchange of information, on December 14, 2021, this Agency declared itself the lead authority in this matter. The transfer of this issue is carried out in

accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act.

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3/6

as the main supervisory authority, given that "OPENBANK" has its registered office and principal establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the German authority of Lower Saxony, the German authorities of Rhineland-Palatinate, North Rhine-Westphalia, Brandenburg, Hesse, Berlin, as well as that of the Netherlands, all under Article 4.22 of the GDPR, since the individuals residing in the territories of these supervisory authorities are substantially affected, or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On September 6, 2022, in accordance with Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: On December 16, 2022, the Director of the AEPD adopted a draft decision to archive the proceedings. Following the process established in Article 60 of the GDPR, on January 13, 2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the timeframe set for this purpose, the interested supervisory authorities did not submit relevant and justified objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 60.8 of the GDPR and as provided in Articles 47 and 48 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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4/6

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, since OPENBANK collects and retains, among others, the following personal data of individuals: name and surname, date of birth, and email address, among other processing activities.

OPENBANK carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, under Article 4.7 of the GDPR. Furthermore, this is a cross-border processing, given that OPENBANK is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as provided in its Article 4.23), in relation to the competence of the main supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or the processor shall be competent to act as the main supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, OPENBANK has its main establishment in Spain, so the Spanish Data Protection Agency is competent to act as the main supervisory authority. For its part, Article 6.1.c) of the GDPR regulates the lawfulness of processing.

III

Lawfulness of Processing

Article 6.1 "Lawfulness of Processing" of the GDPR states:

"Processing shall be lawful only if at least one of the following applies:

(...)

c) processing is necessary for compliance with a legal obligation to which the controller is subject.

(...)."

In the present case, the complainant states that, when attempting to make a transfer, OPENBANK requested additional documentation containing personal data, which they believe should not have been requested.

In this regard, OPENBANK's banking activity is subject to Spanish legislation, which includes Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism. Article 5 of this Law establishes that obligated subjects must know, as a measure of due diligence, the purpose and nature of the business relationship, and "...in particular, obligated subjects shall collect information from their clients in order to know the...

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5/6

the nature of their professional or business activity and will adopt measures aimed at reasonably verifying the truthfulness of such information.

Such measures will consist of the establishment and application of verification procedures for the activities declared by clients. These procedures will take into account the different level of risk and will be based on obtaining documents from clients related to the declared activity or obtaining information about it from sources other than the client themselves.

Furthermore, according to Article 7, the obligated subjects will apply each of the due diligence measures and may determine the degree of application of the measures based on the risk and depending on the type of client, business relationship, product, or operation.

Additionally, this article states that when there are indications of money laundering or terrorism financing, they will apply due diligence measures regardless of any exception, exemption, or threshold, or when there are doubts about the truthfulness or adequacy of the data obtained previously.

In this case, and based on the information provided, there are not sufficient indications to understand that the requested information would not be processed in accordance with Spanish legislation regarding the prevention of money laundering, or that it would not be kept with the necessary security measures.

Moreover, according to Spanish legislation, it is sufficient for the financial entity to have doubts about the truthfulness of the information provided in order to request any information it deems appropriate.

Therefore, based on the aforementioned paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the stated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to OPEN BANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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6/6